

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

12. RUDY PAIVA V. CARLA PEREZ

24FL0031

Petitioner filed a Request for Order on March 17, 2026, seeking “finalization of divorce”. There is no Proof of Service showing Respondent was properly served.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #12: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

14. JESSICA RUBALCAVA V. ISAIAH RUBALCAVA

24FL0018

Petitioner filed a Request for Order (RFO) on March 27, 2026, seeking temporary spousal support in the amount of \$5,000 per month, as well as other financial relief. Petitioner did not concurrently file an Income and Expense Declaration. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Respondent filed a Responsive Declaration on May 12, 2026. It was served the same day. Respondent requests the court deny the requested orders and maintain all current orders. Additionally, Respondent requests Family Code section 271 sanctions in the amount of \$5,000.

The court has reviewed and considered the documents as set forth above. The court finds good cause to proceed despite the lack of proper service as Respondent has filed a Responsive Declaration. As such, the court finds the defect to have been waived.

The court denies Petitioner's request in its entirety. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. The court finds Petitioner has failed to file an Income and Expense Declaration as required.

As to Respondent's request for Family Code section 271 sanctions, that request is denied. Respondent is not represented by counsel and therefore, an award of attorney's fees in the form of a sanction is not appropriate.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT DENIES PETITIONER'S REQUEST IN ITS ENTIRETY. THE COURT FINDS PETITIONER HAS FAILED TO FILE AN INCOME AND EXPENSE DECLARATION AS REQUIRED. AS TO RESPONDENT'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS, THAT REQUEST IS ALSO DENIED.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION